

Gibbs & Associates <attorneys@gibbs-lawfirm.com>

To:

newheightseducation@yahoo.com

Tue, Mar 9 at 12:41 PM

Ms. Clark,

I am including my email from January 27, 2020 on this question below as an easy point of reference. As I stated below, the law does not appear to specifically address the exact issue of continuing to homeschool a child past the mandatory attendance age. The exact language of Ohio Code 3313.6110 (linked below) provides one potential wrinkle when it says regarding who can receive a diploma: "a person who has completed the final year of instruction at home, as authorized under Section 3321.04..." I would doubt the local school district would continue to accept notifications for someone far past the mandatory attendance age, so that begs the question - is the home schooling at that point still "authorized"?

That said, the bigger question would likely be, why would an adult with no disabilities want to continue to "attend school" for a year or more rather than just study and take one of the adult options for a diploma equivalent that I presented to you in the last email?

Ultimately the answer may come down to whether anyone would really question the validity of an issued homeschool diploma. Potential employers may raise an eyebrow at any resume that shows full-time high school education going into the applicant's mid-20s.

--

Stephen D. Peterson, Esq.

Admitted in Florida

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Gibbs & Associates Law Firm <attorneys@gibbs-lawfirm.com>

To:

newheightseducation@yahoo.com

Nov 7, 2016 at 9:20 AM

Dear Ms. Clark:

Thank you for your question to the Christian Law Association about age cut offs for students to graduate from high school. According to Ohio law (see ORC Ann. 3323.07, attached), the age of all children with special needs (disabilities) is less than 22 (see ORC Ann. 5123.0417, attached). I did not see any sign of a change to 25 in the 2016 statutes.

Please contact us if you have further questions.

Sincerely,

Jeffrey C. Adams

Admitted in Florida

JCA:mlr

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Gibbs & Associates <attorneys@gibbs-lawfirm.com>

To:

newheightseducation@yahoo.com

Thu, Mar 4 at 2:42 PM

Dear Ms. Clark,

Thank you for contacting the Christian Law Association.

I am including here a [link](#) to the Ohio Department of Education's website about the varying options available for high school diplomas to those who are too old to attend school. If the person is homeschooled, I would refer you to the email I sent you back on January 27th, 2020 in response to your inquiry regarding homeschooling a child past mandatory schooling age.

Please feel free to call the office if you have any questions.

--

Stephen D. Peterson, Esq.

Admitted in Florida

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